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Decision of December 7, 2023
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IN THE meeting held today, attended by
Prof. Pasquale Stanzone, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, Members, and
Counsel Fabio Mattei, Secretary General;

HAVING REGARD to Regulation (EU) 2016/679 of the European Parliament and of the Council, of
April 27, 2016 (hereinafter, "Regulation");

HAVING REGARD to Legislative Decree No. 196 of June 30, 2003 (Code regarding the protection of
personal data, hereinafter "Code") as amended by Legislative Decree No. 101 of August 10, 2018,
containing "Provisions for the adaptation of national legislation to the provisions of Regulation (EU)
2016/679";

HAVING REGARD to the complaint submitted by Mr. XX pursuant to Article 77 of the Regulation, in
which a violation of the rules on the protection of personal data by Sirio S.p.A. was alleged;

HAVING EXAMINED the documentation on file;

HAVING REGARD to the observations made by the Secretary General pursuant to Article 15 of the
Regulation of the Guarantor No. 1/2000;

REPORTING Attorney Guido Scorza;

PREAMBLE

1. The complaint and the initiation of the preliminary investigation.

With the complaint submitted to this Authority on 07/15/2021, Mr. XX alleged a violation of the rules on
the protection of personal data carried out by Sirio S.p.A. (hereinafter "the Company"), in its capacity
as his employer.

In particular, the complainant stated that he held the position of Assistant Manager at the XX,
managed by the aforementioned Company, and was responsible, among other things, for depositing
the receipts from the point of sale into the Company's bank account. For this reason, he was the holder
of two bank cards activated, with his consent, by the Company at two credit institutions.

However, on 07/07/2021, he received from a credit institution a pre-filled issuance form for a new
so-called Deposit card with his personal data, which had previously been communicated to the Bank
by the Company. With the complaint, he therefore alleged the unlawful processing of his personal
data, as it was communicated without consent and without any information regarding it.

Consequently, the Office initiated the preliminary investigation, inviting the Company to provide
observations regarding the facts subject to the complaint, with the request for information made
pursuant to Article 157 of the Code (note of 12/20/2021).

The Company responded with the note of 01/19/2022, in which it stated that:

- "Due to the role and duties held, the [complainant] performed, in compliance with the instructions
received from the managerial staff of the point of sale, activities as the manager of the refreshment
point XX, autonomously handling conceptual tasks as well as the technical-functional coordination of
other workers";
- "In particular, following the assignment of this role, the [complainant] was tasked with making cash
deposits recorded at the point of sale into the Company's bank account, using bank cards exclusively
issued in his name";
- following the initiation of the preventive concordat procedure before the territorially competent Court,
"all previous bank accounts were blocked and a new bank account was opened on 06/21/2021 at (...) with the issuance of new deposit cards planned";
- therefore, "the Company, on 07/07/2021, sent the employee the bank form for the issuance of the

new 'Deposit card' in replacement of the previous ones to ensure that the Assistant Manager of the new point of sale could fulfill his duties regarding the deposit of cash".

Regarding the legal grounds for the communication of data to a third party and the manner in which the information was provided to the complainant, the Company stated that:

- "The legal basis that legitimized this processing is primarily found in the execution of the employment contract of which the [complainant] is a party pursuant to Article 6, paragraph 1, letter b) of the GDPR (...), as well as in the fulfillment of the consequent legal obligations to which Sirio S.p.A. is subject as the data controller under Article 6, paragraph 1, letter c) of the GDPR (...);
- indeed, "within the framework of the existing employment relationship, the employer is legitimized (and required) to use the personal data provided by employees to fulfill its contractual duties, as well as for the legitimate exercise of its prerogatives in organizing the work performance of employees";
- "Sirio S.p.A. therefore legitimately processed the data of the [complainant] (specifically the residential address and personal mobile phone number) by virtue of the existing employment contract between the parties, communicating to the involved credit institution what was strictly necessary for the activation of the cash deposit card and allowing him to regularly perform his duties";
- "(...) the existing employment relationship (...) constitutes the elements of a qualified legal relationship between the parties such as to legitimize the employer's interest in processing employee data when responding to the resolution of technical business needs,

****Organizational and Productive****

In light of the statements made, the Office invited the Company to provide further elements for evaluation as well as to produce suitable documentation regarding the ways in which the claimant was informed by the Company about the use of personal data for the issuance of deposit cards in his name (note dated 14/04/2022).

The Company, in its note dated 13/05/2022, sent its observations transmitting:

- a copy of the information provided to its employees pursuant to Article 13 of the Regulation;
- documentation related to the applicable Collective Bargaining Agreement (CCNL Tourism – P.E. Confcommercio Fipe), useful for identifying the duties and responsibilities assigned to the claimant that fall under those of the "manager of the chain commercial catering service";
- a consent form for the processing of personal data, signed by the claimant at the time of activation of the first cash deposit card.

****2. The initiation of the procedure for the adoption of corrective measures and the Company's deductions.****

Based on the statements made and the documentation produced during the investigation, the Office proceeded to notify the Company of the initiation of the sanctioning procedure, pursuant to Article 166, paragraph 5, of the Code in relation to the violation of Articles 5, paragraph 1, letter a), 6, and 13 of the Regulation (note dated 21/09/2022).

With the defensive memoranda sent on 21/10/2022, pursuant to Article 18 of Law No. 689/1981, the Company confirmed what had already been previously communicated, stating that:

- based on what is provided by the applicable CCNL for the sector, the role held by the claimant falls within that provided and regulated by Article 54, 3rd level, which includes "professionalism with a high degree of specialization and competence acquired in the field, capable of performing tasks 'of concept or predominantly such' (...) even under conditions of 'operational autonomy', among which is included the 'manager of the chain commercial catering service'";
- although the regulatory provision does not expressly refer to cash management and cash deposit operations, "the request to fulfill such duties appears to be legitimately exigible from a worker who, to hold such a role, is required to operate in compliance with the instructions and directives given by the management of the sales point 'under conditions of operational autonomy'", so much so that this function has been regularly performed by the claimant since 2019;
- in this specific case, particular consideration must be given to the legitimate interest of the data controller referred to in Article 6, paragraph 1, letter f), of the Regulation, which justifies the processing activity carried out as it is performed "in the presence of a relevant and appropriate relationship between the data subject and the controller" (Recital 47) and for the pursuit of purposes "compatible

with those for which the personal data were initially collected" (Recital 50);

- following the refusal of the data subject to the processing of data for the purpose of activating the Deposit card, "the company immediately ceased the processing".

In the note sent on 23/10/2023, the Company communicated its intention to waive the previously requested hearing, considering that there were no further elements to bring to the attention of the Authority, beyond those already presented in the defensive memoranda.

****3. The outcome of the investigation and the procedure for the adoption of corrective measures.****

As a result of the examination of the documentation produced and the statements made by the party during the procedure, it is noted that, unless the fact constitutes a more serious offense, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable under Article 168 of the Code. It has emerged that the Company, as the data controller, has carried out a processing of personal data related to the claimant that does not comply with the regulations on the protection of personal data.

In particular, as a result of the investigation carried out, it has emerged that the Company communicated the personal data of the claimant to a credit institution in order to allow the issuance and registration of a deposit card; this processing operation took place without having provided the data subject with suitable information, pursuant to Article 13 of the Regulation, based on which the data subject could have been aware of the main information regarding the processing actually carried out, as well as in the absence of a suitable legal basis, among those identified in Article 6 of the Regulation.

****3.1. Violation of Articles 5, paragraph 1, letter a), and 13 of the Regulation.****

Aside from verifying the correct assignment to the employee qualified as Assistant Manager of the specific task, consisting of cash operations, attention must be drawn to the circumstance that the communication of the claimant's personal data to a third party (specifically the credit institution), which the Company deemed necessary precisely for the fulfillment of the specific task, was not adequately communicated to the data subject due to the absence of suitable information.

In response to a specific request made by the Authority (note dated 14/04/2022) to obtain a copy of the information provided to the claimant as well as of

know the methods by which he was informed by the Company regarding the use of his personal data for the issuance of payment cards in his name; in fact, no evidence has been produced in the records that proves the fulfillment of the obligation to provide the information.

Indeed, the model of information that was attached to the note dated 19/01/2022 (Annex 16, titled "Information on the processing of personal data EMPLOYEES AND COLLABORATORS") was prepared after the establishment of the employment relationship with the claimant (which took place on 19/01/2016) and was distributed to all employees via the Payroll Portal in April 2021 (Annex 17 to the aforementioned note of 19/01/2022). There is therefore no documentation useful to demonstrate that, during this time frame (i.e., from the date of the claimant's hiring to the date of preparation of the aforementioned information), the claimant was informed regarding the processing of personal data necessary for the establishment and management of the employment relationship and, specifically, regarding the communication of data to third parties for the stated purpose of fulfilling his duties.

In this regard, it is noted that even in the informational document from April 2021, it states that "Data may be communicated to (...) all natural and/or legal persons, public and/or private, when the communication is necessary or functional to the establishment and management of the employment or professional collaboration relationship." The formulation is quite generic and, in any case, inadequate to adequately inform the interested parties regarding the subjects or categories of subjects to whom the data may be communicated, the type of data subject to communication, the purposes, and the legal bases for the related processing (Article 13, paragraph 1, letters c) and e) of the Regulation).

Furthermore, also with reference to the execution of the task assigned to the claimant as Assistant Manager to proceed with the deposit of cash into the Company's bank account, it is observed that there is no reference even in the contractual documentation provided during the investigation that could clarify the methods and scope of the communication of the data of the interested party to a third

party, specifically to a credit institution.

It should also be noted that, contrary to what the Company believes, the consent acquisition form prepared by the bank and produced in the records, signed by the claimant on 07/01/2019 (Annex 20 to the note of 13/05/2022), cannot be considered a valid informational document, as it pertains to a different processing operation.

As further confirmation of the claimant's lack of involvement in the communication of data to the credit institution, reference is made to the email exchange produced as Annex 27 to the defense writings of 21/10/2022 between the claimant and other employees of the Company. In this correspondence, the need to request a new PIN from the bank for the use of the deposit card is highlighted, as "the employee (the only holder of a payment card on XX) did not respond to the bank's message thinking it was spam" and that "no one had informed us that a message would arrive for the activation of the cards (...)".

Therefore, the observation notified to the party must be confirmed, according to which the data controller has not complied with the provisions of Article 13 of the Regulation, that is, the obligation to provide the interested party, at the time when the personal data are collected, with suitable information describing the main characteristics of the processing that it intends to carry out, indicating the purposes of the processing, the recipients or categories of recipients of the personal data, the legal basis, and the retention periods of the processed data. This obligation is an expression of the principles of lawfulness, transparency, and fairness, enshrined in Article 5, paragraph 1, letter a), of the Regulation.

3.2. Violation of Article 6 of the Regulation.

Regarding the further aspect of unlawfulness concerning the absence of a valid legal basis for the complained communication of the claimant's data, it is observed that neither the execution of the contract nor the legitimate interest of the controller, both cited by the Company, can serve as suitable legal bases.

As for the legal basis referred to in Article 6, paragraph 1, letter b), of the Regulation, it is generally observed that for this to be validly recognized, the processing must be objectively "necessary" for the execution of the contract. The assessment of the necessity of the processing must be made taking into account the purposes that the controller intends to pursue in compliance with the principles of purpose limitation and transparency towards the interested party.

In the case at hand, since the interested party was not previously informed of the processing carried out, it does not emerge in any of the documents provided by the Company during the investigation that the role of the Assistant Manager, which would have legitimized the communication of data to a third party, was specifically regulated.

Firstly, Article 54 of the National Collective Labor Agreement for Public Services Confcommercio, repeatedly cited by the Company as the general reference norm, indicates that the manager of the commercial catering service chain "(characterized by a plurality of premises with identity of logo and standardization of product and operational processes) (...) [is] the one who, subordinate to the management of the sales point, directly interested in the working phase, operates according to specific instructions, in conditions of operational autonomy and technical-functional coordination of other workers." Beyond the issue regarding the assignment to the Assistant Manager to carry out cash operations (an issue on which the Authority is not competent to express evaluations), it remains firm that, in light of the aforementioned regulations, the management of the point of sale must provide its employee with "specific instructions" to follow in the performance of the work task. Based on the documentation on file, however, it does not appear that specific instructions related to the particular activity were provided to the interested party. Lastly, on this specific aspect, it is noted that, based on what the company stated, the claimant continued to perform the function of Assistant Manager even after the refusal to have the card registered in their name.

Regarding the further legal basis identified by the Company in Article 6, paragraph 1, letter f), of the Regulation, it is generally represented that legitimate interest can constitute a suitable legal basis, where “the interests or the rights and fundamental freedoms of the data subject do not prevail.” The data controller must carry out a careful assessment of the impact that the processing may have on the interests and rights of the data subjects and on the possibility that it may lead to violations or negative consequences for their rights. This translates into a balancing of interests that, based on Article 6, paragraph 1, letter f), is in fact mandatory. The data controller must, therefore, conduct a comparative test to assess the possibility of carrying out the processing of personal data in the presence of a legitimate interest. It does not appear, at this stage of the proceedings, that the Company has acted in this regard.

Recital 47 of the Regulation, cited by the Company to support its argument, where it recognizes the existence of a legitimate interest of the controller “when there is a relevant and appropriate relationship between the data subject and the data controller, for example when the data subject (...) is employed by the controller,” does not exempt the controller from the obligation to carry out a comparative assessment aimed at verifying that the rights of the data subject do not prevail over its legitimate interests. In light of the above, it is noted that the controller has carried out the processing of personal data related to its employee in the absence of a suitable legal basis and, therefore, in violation of Article 6 of the Regulation.

4. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to Article 58, paragraph 2, of the Regulation. For the reasons stated above, the Authority believes that the statements, documentation, and reconstructions provided by the data controller during the investigation do not allow for overcoming the observations notified by the Office with the initiation of the procedure and are therefore inadequate to allow for the closure of this procedure, as none of the cases provided for by Article 11 of the Garante Regulation No. 1/2019 apply. The processing of personal data carried out by the Company is unlawful as it was conducted in violation of Articles 5, paragraph 1, letter a), 6, and 13 of the Regulation.

5. Injunction order. The Garante, pursuant to Article 58, paragraph 2, letter i) of the Regulation and Article 166 of the Code, has the power to impose an administrative monetary sanction provided for by Article 83, paragraph 5, of the Regulation, through the adoption of an injunction order (Article 18, Law No. 689 of November 24, 1981), in relation to the processing of personal data concerning the claimant, which has been found to be unlawful, as stated above. With reference to the elements listed in Article 83, paragraph 2, of the Regulation for the application of the administrative monetary sanction and its quantification, considering that the sanction must be “effective, proportionate, and dissuasive in each individual case” (Article 83, paragraph 1 of the Regulation), it is represented that, in this case, the following circumstances have been taken into account:

- regarding the nature, severity, and duration of the violation, the nature of the violation concerning the communication of personal data to third parties was considered significant;
- the absence of previous relevant violations committed by the data controller;
- the circumstance that the violation concerned only one data subject;

In consideration of the aforementioned principles of effectiveness, proportionality, and dissuasiveness (Article 83, paragraph 1, of the Regulation) to which the Authority must adhere in determining the amount of the sanction, the economic conditions of the offender as reported in the financial statements for the years 2021 and 2022 were taken into account. Based on the aforementioned elements, evaluated as a whole, it is deemed appropriate to determine the amount of the monetary sanction at €1,000.00 (one thousand) for the violation of Articles 5, paragraph 1, letter a), 6, and 13 of the Regulation. In this context, also considering the type of violation established, which concerned the rights of the data subject, it is believed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Garante Regulation No. 1/2019, the publication of this provision on the Garante's website should be carried out. Finally, it is noted that the conditions referred to in Article 17 of Regulation No. 1/2019 concerning the...

**Internal procedures with external relevance, aimed at carrying out the tasks and exercising the

powers assigned to the Authority.**

****WHEREAS, THE AUTHORITY**** notes the unlawfulness of the processing carried out by Sirio S.p.A., represented by its legal representative pro tempore, with registered office in Ravenna, Via Filippo Re n. 43-45, C.F. 04142890377, pursuant to Article 143 of the Code, for the violation of Articles 5, paragraph 1, letter a), 6, and 13 of the Regulation;

****ORDERS****

pursuant to Article 58, paragraph 2, letter i), of the Regulation, to Sirio S.p.A., to pay the sum of euro 1,000.00 (one thousand) as an administrative pecuniary sanction for the violations indicated in this provision;

pursuant to Article 58, paragraph 2, letter d), of the Regulation, to bring the processing into compliance with the provisions regarding the protection of personal data, by preparing a suitable information notice pursuant to Article 13 of the Regulation and communicating it to the Authority within 60 days from the date of notification of this provision.

****ORDERS****

the same Company to pay the aforementioned sum of euro 1,000.00 (one thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement actions pursuant to Article 27 of Law No. 689/1981.

It is reminded that the offender retains the option to resolve the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction, within the term provided for the submission of the appeal as indicated below (Article 166, paragraph 8, of the Code), in accordance with Article 10, paragraph 3, of Legislative Decree No. 150 of 1.9.2011.

****DECIDES****

the publication of this provision on the Authority's website pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Authority's Regulation No. 1/20129, and considers that the conditions set forth in Article 17 of Regulation No. 1/2019 are met.

Requests the company to communicate what initiatives have been undertaken in order to implement the provisions of this provision and to provide adequately documented feedback pursuant to Article 157 of the Code, within 60 days from the date of notification of this provision; any failure to respond may result in the application of the administrative sanction provided for in Article 83, paragraph 5, letter e) of the Regulation.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150/2011, an appeal against this provision may be submitted to the ordinary judicial authority, with an application filed at the ordinary court of the place identified in the same Article 10, within thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, December 7, 2023

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE SECRETARY GENERAL

Mattei